

SENATE JOINT RESOLUTION 559

By Powers

A RESOLUTION to urge the United States Congress to pass the Eliminating Discrimination And Creating Corridors to Expand Student Success (ED ACCESS) Act of 2022.

WHEREAS, the American Opportunity Tax Credit (AOTC) is the primary tax credit available to students seeking higher education; and

WHEREAS, students with a felony drug conviction are permanently ineligible for this tax credit; and

WHEREAS, the RAND Corporation has found that incarcerated individuals who participated in correctional education programs had a forty-three percent lower chance of recidivating than those who did not; and

WHEREAS, one such correctional education program in Tennessee administered by the Tennessee Higher Education Initiative has a recidivism rate of less than one percent; and

WHEREAS, denying the AOTC to students with felony drug convictions makes it even harder for this population to afford college and get their life on track; and

WHEREAS, making college less affordable for people convicted of drug felonies is not an effective deterrent for drug crime, and no such restriction exists for other types of felonies, such as murder; and

WHEREAS, former Congresswoman Diane Black (R-TN), also a former member of the House of Representatives and Senate of the State of Tennessee, proposed the Student and Family Tax Simplification Act, which passed the House in the 113th Congress and would have repealed the AOTC's felony drug ban; and

WHEREAS, current members of the U.S. Congress have made recent attempts to repeal the denial of the AOTC for students convicted of a felony drug offense, for example the

Eliminating Discrimination And Creating Corridors to Expand Student Success (ED ACCESS) Act of 2022, cosponsored by Senator Rob Portman (R-OH), Representative David Schweikert (R-AZ), and Brad R. Wenstrup (R-OH); now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that we urge the United States Congress to pass the Eliminating Discrimination And Creating Corridors to Expand Student Success (ED ACCESS) Act of 2022 or any similar legislation that eliminates the denial of the American Opportunity Tax Credit for students convicted of a felony drug offense.

BE IT FURTHER RESOLVED, that a certified copy of this resolution be transmitted to the Speaker and the Clerk of the United States House of Representatives, the President and the Secretary of the United States Senate, each member of the Tennessee Congressional delegation, the Attorney General of the United States of America, and the Attorney General of the State of Tennessee.